LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

CASE ID	JURISDICTION	GENERATED
golden-complete-pack-001	england	30 April 2026

Stage 2: Section 8 Court & Possession Pack

Case Summary — Stage 2 Court & Possession

DO NOT ISSUE YET

Carry the case into court without breaking the file

This complete pack includes both Stage 1 notice and service documents and Stage 2 court papers, keeping the notice, service record, court forms, and evidence aligned in one possession file.

Case ID: golden-complete-pack-001 | **Jurisdiction:** england | **Generated:** 30 April 2026

Most possession cases fail on notice, service, or consistency errors — this pack is designed to prevent those.

PROPERTY
16 Willow Mews York YO24 3HX

TENANT
Ivy Carleton

GROUNDS
Ground 8 (mandatory), Ground 10 (discretionary)

ARREARS
£3600.00

NOTICE SERVED
30 April 2026

NOTICE EXPIRES
28 May 2026

EARLIEST PROCEEDINGS
28 May 2026

CLAIMANT
Daniel Mercer

What this pack does

- Includes both the Stage 1 notice pack and the Stage 2 court documents
- Keeps service, claim wording, and evidence aligned for court
- Reduces the risk of delay, contradiction, or weak filing

Next step

Prepare the court file now and do not issue before 28 May 2026.

Court: York County Court and Family Court

Rent due: 1st day of each month

Arrears at notice date: £3600.00

Key Risks

CRITICAL

Prescribed information not confirmed

Deposit protection is recorded with TDS on 15 January 2024, but prescribed information is not recorded as served. For most post-1 May 2026 private-rented-sector grounds, the court will not make a possession order until the deposit position has been cured, the deposit has been returned, or any deposit-compliance dispute has already been resolved.

Action: Confirm, cure, or return the deposit before relying on the possession route.

RISK

Gas safety record not confirmed

No gas safety provision is recorded. This does not automatically invalidate a Section 8 notice, but it can create regulatory or evidential risk.

Action: Locate the gas safety record or document why it does not apply before the file is challenged.

RISK

EPC record not confirmed

No EPC provision is recorded. This is not treated here as automatic Section 8 invalidity, but it remains a legal and evidential risk that should be addressed.

Action: Locate the EPC record or explain the position in the evidence file.

Compliance Snapshot

PRESCRIBED INFORMATION NOT CONFIRMED

CRITICAL

Deposit protection is recorded with TDS on 15 January 2024, but prescribed information is not recorded as served. For most post-1 May 2026 private-rented-sector grounds, the court will not make a possession order until the deposit position has been cured, the deposit has been returned, or any deposit-compliance dispute has already been resolved.

Action: Confirm, cure, or return the deposit before relying on the possession route.

GAS SAFETY RECORD NOT CONFIRMED

RISK

No gas safety provision is recorded. This does not automatically invalidate a Section 8 notice, but it can create regulatory or evidential risk.

Action: Locate the gas safety record or document why it does not apply before the file is challenged.

EPC RECORD NOT CONFIRMED

RISK

No EPC provision is recorded. This is not treated here as automatic Section 8 invalidity, but it remains a legal and evidential risk that should be addressed.

Action: Locate the EPC record or explain the position in the evidence file.

HOW TO RENT RECORD NOT CONFIRMED

OK

No How to Rent service record is shown. That does not automatically invalidate a Section 8 notice, but it is worth checking the tenancy file and recording what was served.

Action: Check the tenancy file and record the position so the file stays complete.

NOTICE TIMELINE RECORDED

OK

Notice served on 30 April 2026 with earliest proceedings date 28 May 2026.

Action: Keep the service date, expiry date, and proceedings date aligned across the notice, N215, and any court papers.

Case Context

The claimant seeks possession of 16 Willow Mews York YO24 3HX relying on Ground 8 (Rent arrears), Ground 10 (Any rent arrears).

The tenancy began on 1 January 2024. The contractual rent is £1,200.00 payable monthly on the 1st day of each rental period.

Ground 8 is relied on as the serious rent arrears ground.

At the date of service of the Form 3A notice on 30 April 2026, the arrears stood at £3,600.00.

That figure is presented as exceeding the statutory Ground 8 threshold of £3,600.00 (3 months).

The rent account and arrears schedule show the unpaid or short-paid periods between 1 January 2026 and 31 March 2026, 3 missed payments.

Ground 10 is relied on because rent lawfully due was unpaid when the notice was served and remains part of the claim history.

The arrears balance relied on for Ground 10 is £3,600.00.

The arrears history, service chronology, and any further tenancy concerns should be read together as part of one possession case, while each statutory ground remains separately pleaded.

Form 3A notice served on 30 April 2026, expiring on 28 May 2026, with proceedings not intended before 28 May 2026.

Procedural Notes

The rent account first shows an unpaid or short-paid period from 1 January 2026. The most recent affected rental period is 1 March 2026. The current arrears total is £3,600.00 across 3 missed or short-paid rental periods.

The Form 3A notice service milestone currently recorded is 30 April 2026. The possession / proceedings date currently recorded in the file is 28 May 2026.

Defendant Circumstances

The claimant is not aware of any further information about the defendant's circumstances beyond the matters set out in the claim papers and any information the defendant may wish to place before the court.

Financial Position

The claimant seeks possession and, if the court thinks fit, judgment for rent arrears currently quantified at £3,600.00.

The contractual rent is £1,200.00 payable monthly.

Form 3A notice served on 30 April 2026, expiring on 28 May 2026, with proceedings not intended before 28 May 2026.